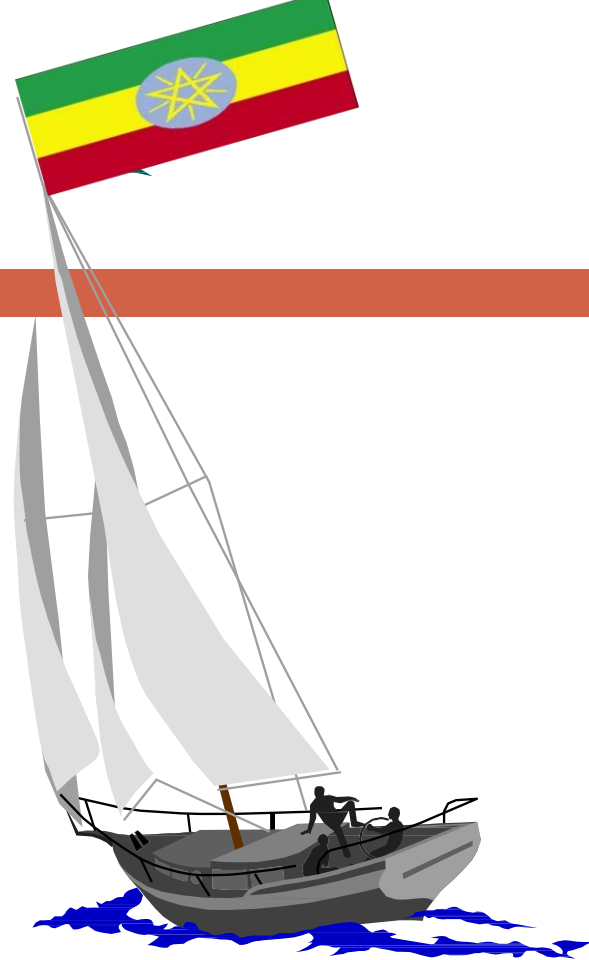


Ethical Dilemmas:

Deciding People's Fate





Framework For Ethical Analysis

Brainstorming

2

- You are on a sinking ship and there is only ONE lifeboat available. Posted on the side of the lifeboat is: **“Maximum Occupancy” - 8 persons... this boat will sink if over occupied.** Standing on the deck and waiting on board the lifeboat are nine adults and one child. You must decide who dies. Be prepared to defend your decision.



Persons on deck

- You
- A young mother and her infant son
- A 75 year old retired pharmacist & His 68 year old wife
- A 17 year old, pregnant girl (this counts as one person)
- A professional athlete (Female)
- A member of parliament
- A middle aged school teacher and her husband (a banker)



Topics be Addressed

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- Ethical Dilemmas and Method of Analysis
- Unethical Practice
 - Why?
 - Consequences?



Ethical dilemma

- Ethical issues and dilemmas are a reality of everyday practice
- The ability to make sound ethical decisions is a fundamental responsibility of pharmacists as healthcare professionals
- When confronted with an ethical issue or dilemma, pharmacists should systematically work through the steps outlined in the Framework.
-

Ethical Dilemmas: Ethical paradox

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★ An ethical dilemma

- ★ It is a moral situation in which a choice has to be made between **two equally undesirable alternatives**.
- ★ It arises out of various sources of behavior or attitude
 - ★ For instance, it may arise out of **failure of personal character, conflict of personal values and organizational goals, organizational goals versus social values**, etc..
- An ethical dilemma arises when the clients and health care providers differ in their understanding of what is right or wrong
- Practitioners and patients are at cross-roads where choice and decision making become difficult in terms of ethics

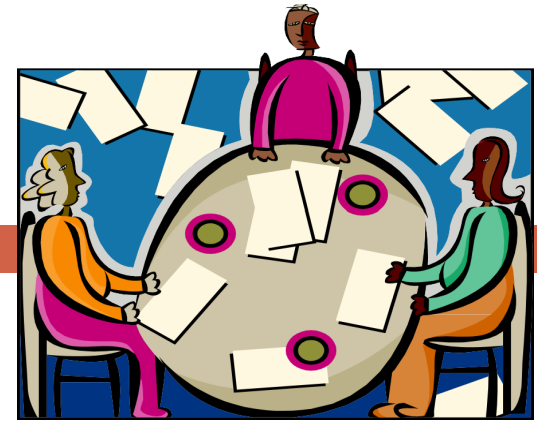
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- Ethical dilemmas emerge when a hard problem does not have a solution that will satisfy all involved people.
 - It occur when a situation emerges that involves choosing between unsatisfactory alternatives that are equal

Ethical Dilemmas: Ethical paradox...

- ★ Conflict of moral values:
 - No clear right or wrong answer
 - More than one correct solution

Ethical Issues for Discussion

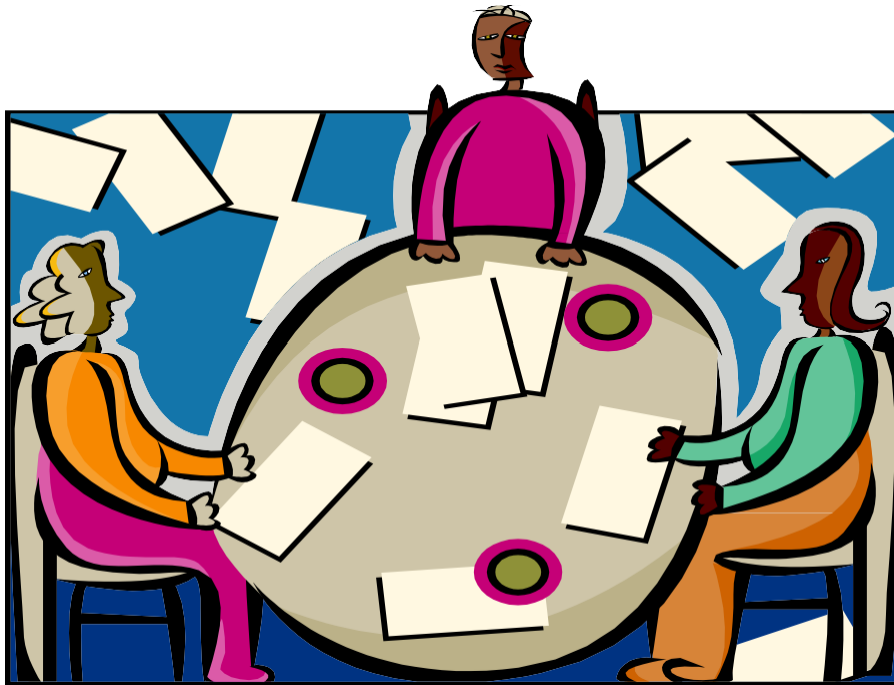
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Examples:

- Should individuals be allowed to use scarce healthcare resources when death is inevitable?
- Should a woman be allowed an abortion for any reason?
- End of life decisions
- Should a parent have a right to refuse immunizations for his or her child?

Group Exercise



Examples of ethical dilemma

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Case-1:

- You are the pharmacist in a pharmacy with a separate medicines counter. A young man approaches the counter and is abusive to your colleague working with you. You go to assist your colleague. The customer is then abusive to you and demands his prescription. **Would you serve the customer or not?**

Examples...

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Case-2:

- ➡ You are the pharmacists in charge. You are serving customers at your medicine counter when the police officer approaches and asks you for information about a service user. You know the pt he is asking about; it is one of your current **Methadone** patients. You are informed about that the pt has died in suspicious circumstances and the police officer wants to look at the patient's medication record and your controlled drug registries.

- 
- The officer tells you that he can't give you any further info.
 - **Would you allow the officer to view your registries?**

Ethical Decision Making

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- Ethical decisions are not made in vacuum
- Many factors influence decision making:
 - 👍 Religious beliefs
 - 👍 Personal experiences
 - 👍 Socio-cultural changes
 - 👍 Professional code of ethics
 - 👍 Legal issues

Framework for ethical decision making

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- Right answer may not exist
- Framework may helpful:
 - Identifying basic issues
 - Individuals look beyond their first thought & feelings
 - Encouraging critical thinking approach

Method of Analysis of Ethical Dilemma

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ADPIE: Decision Making Model

★ **Assessment**

- ☐ Gather the facts/collect all relevant info from a variety of sources

★ **Diagnosis**

- ☐ Identify/clarify the problem or issue

ADPIE ...

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★ Plan

-  Explore alternatives and/options
-  Identify the consequences of actions/non-actions
-  Select the course of action/make a decision
-  Justify the decision

ADPIE ...

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★ Implementation

 Carry out the plan

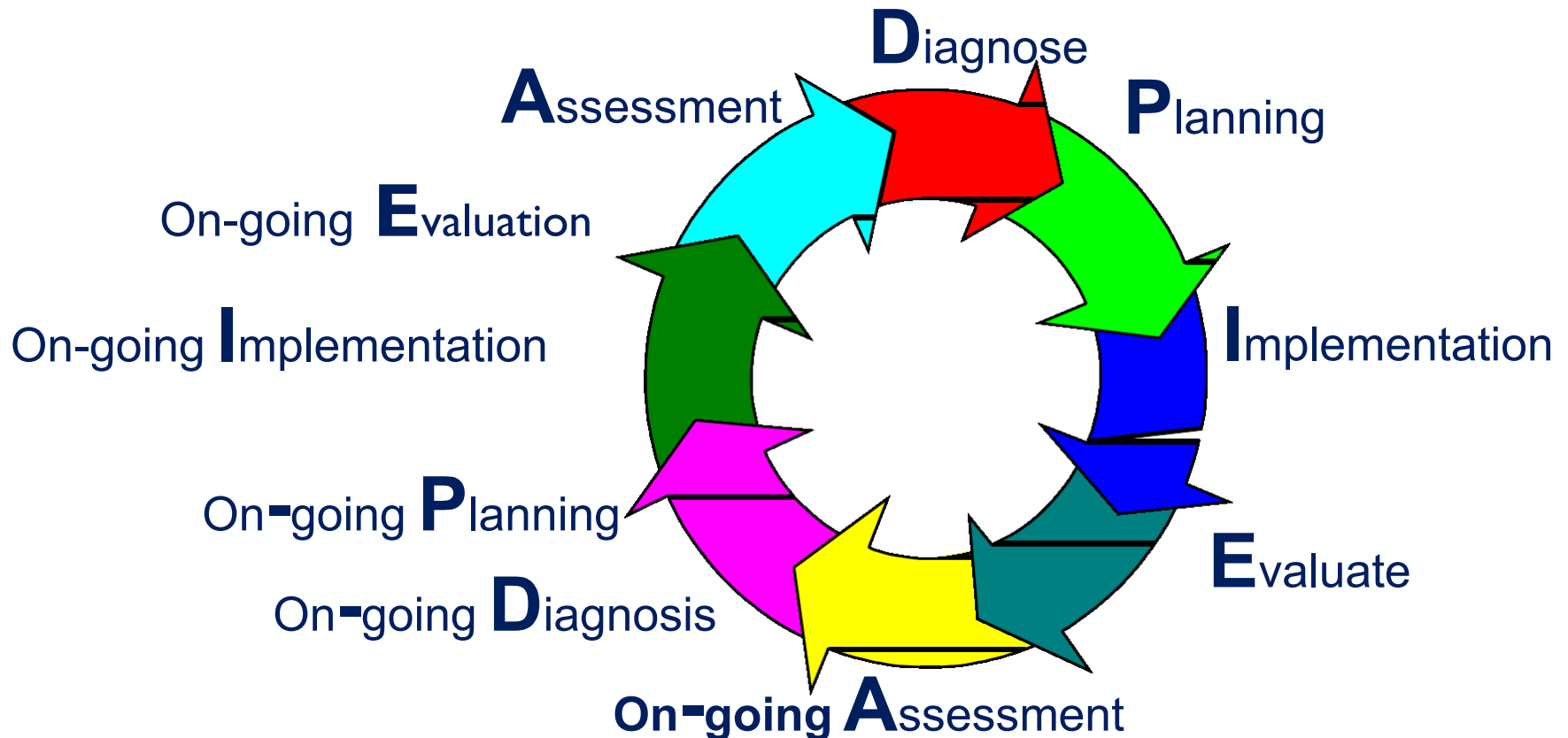
★ Evaluation

 Assessment of outcomes and Lessons learned

 Determine how this ethical problem could possibly have been prevented

ADPIE ...

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Approaches to Solve Ethical Dilemma

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→ Approaches

- Principlist approach
- Discourse ethics approach

Principlist Approach

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- ★ Resolving conflicts through an appeal to a **set of principles**

Beneficence/Nonmaleficence, Autonomy, Justice...

- Presupposes ethical dilemmas are responsibilities of HPs
- Patient assumed to be largely passive

Approach ...

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Advantage:

- ✓ Stresses on an appeal to reasoning rather than intuition
- ✓ Excellent as working principle to start practice

Drawbacks:

- ✓ Unreflective of the patient's view
- ✓ Recognizes dilemma when it is encountered (no preventive)

Discourse Ethics

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- Discourse Ethics:
 - Prevention and resolution of ethical dilemma through open debate and discussion b/n HPs & Pt
 - Assume knowledge, ability and sensitivity of individual is advanced through engagement with other individuals
 - Consider challenges and experiences of others
 - Accepts that all decisions made are likely to be imperfect, and that they will be open to revision in the light of new experiences or arguments

Approach ...

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★ Advantage:

- ✓ It is reflective of patient's view

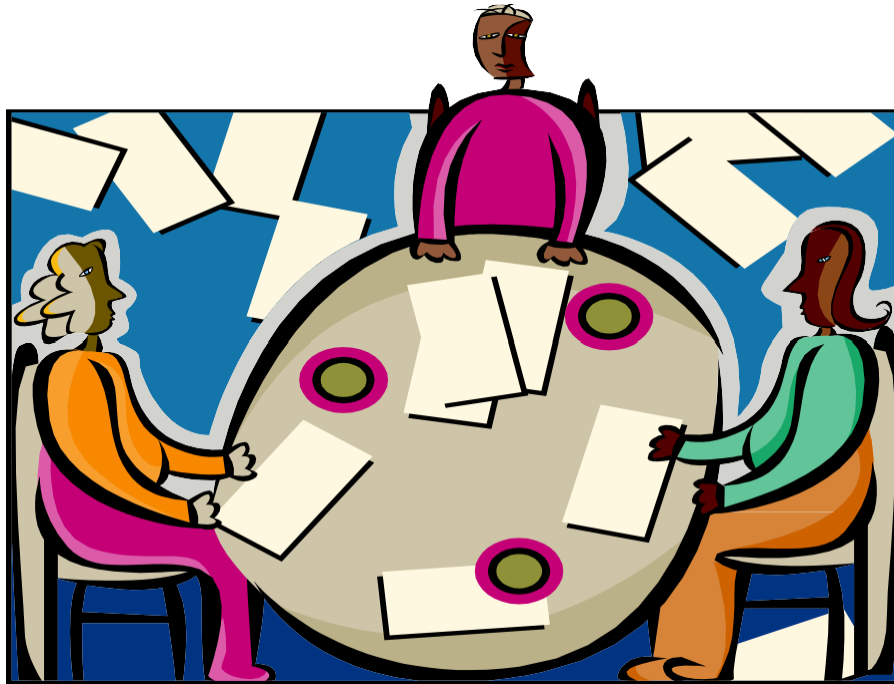
Drawbacks:

- ✓ Open debate occurs rarely (imbalance of power)

Apply Your Knowledge!!!

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Group Exercises!!!



Solving Ethical Dilemma: Examples

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Case-I: Abusive customer

- You are the pharmacist in your own pharmacy with a separate medicines counter. A young man approaches the counter and is abusive to your colleague working with you. You go to assist your colleague. The customer is then abusive to you and demands his prescription. **Would you serve the customer or not?**

Examples (1).....

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→ Issues:

- Customer is abusive but not known why
- If unresolved, customer may become more violent
- Duty to protect your staff (under: Health Safety at Work)
- Under code of ethics: Duty to serve the customer
- As your private property: Right to exclude people

Examples (1).....

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→ **Priorities:**

- Your duty of care to the patient means that you can't deny him his prescription
- You also have duty of care to your staff but this must not compromise patient care
- If you fail to protect your staff adequately, there is a potential for legal action against you

Examples (1).....

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→ Outcomes:

- You could try to eject the customer from the pharmacy and support your staff
- You could advise the customer he will not be served unless he alters his behavior
- You could advise the customer that you will dispense the prescription but that he must wait outside the pharmacy
- You could advise the customer that someone else must collect the prescription and that he is not welcome in your pharmacy

Examples (1).....

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→ **Decide/act:**

- Any action that involves confronting the customer may lead to further conflict;

■ Serving the customer whilst making it clear that you will not tolerate such behavior is likely to be course of action!!

Examples (1).....

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→ Justification:

- The instant personal reaction may be to try to eject the customer from the pharmacy.
- Refusing to serve a customer causes an ethical dilemma for pharmacists in that the code of ethics states that the patient should be the pharmacist's prime concern.
- By refusing to serve the customer the risk of verbal abuse or violence to the pharmacist and the member of staff increase.

- 
- This risk could be further increased if the customer is confronted by the pharmacist or admonished, which causes embarrassment.

NB: Talking to other experienced pharmacists or undergoing training might help you to deal with these situations.

Examples(2)

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Case-2: Police Visit

- You are the pharmacists in charge. You are serving customers at your medicine counter when the police officer approaches and asks you for info about a service user. You know the pt he is asking about is one of your current Methadone patients. You are informed about that the pt has died in suspicious circumstances and the police officer wants to look at the patient's medication record and your controlled drug registries. The officer tells you that he can't give you any further info.

Would you allow the officer to view your registries?

Examples(2).....

30

→ Issues:

- Police officer is investigating a potential crime and has asked for your help
- Despite being deceased you still have a duty with regard to confidentiality
- Patient hasn't given, and apparently now is not able to give, consent to disclose such information

- 
- Police don't have automatic right to inspect pharmacy and pt records (showing him affect confidentiality of Pt)
 - Considering whether there is risk of harm to the public that outweigh to the pt confidentiality

Examples(2).....

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→ Priorities:

- Whilst pharmacist should assist the police, they also have a duty of confidentiality to the Pt involved and also other Pts with records in the register.
- It is the police officer requesting the info or disclosure covered by the exceptional circumstances set out in the professional guidance?

Examples(2).....

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→ Outcomes

- If the police need access to the records they can make a request in writing stating the purpose
- If so, the pharmacist would have to divulge the minimum info needed to comply with the court order or be deemed in contempt of court
- If the pharmacist did give the police officer full access to records then the offense may have been committed under the Data Protection Act

Examples(2).....

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→ Decide/act:

- Full access to records is inappropriate and unnecessary
- It would be sensible to ask the police to make a request for access in writing rather than just refuse
- If written request received: Limited access (e.g. making photocopy and deleting other patients details)

Examples(2).....

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→ Justification

- The Code of ethics and professional standards require pharmacists to protect patients; it is possible to protect the info held on Pts without obstructing the police in their investigations
- The officer is unlikely to understand your predicament, so being open and honest about your duty to the patient may help
- A balance must be struck so that confidentiality is not compromised and the police can investigate a potential crime effectively

Exercise/Assignment

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- **Case-3:** A woman has found some medication in her son's room. She reads the labels ***lamivudine, zidovudine & saquinavir***. She asks you if these are for the dental treatment he received last week?
- ▣ Can you tell her what they are for?
 - ▣ Would your answer be different if the call was from his wife?

Exercise/Assignment

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- **Case-4:** You are working as the sole pharmacist in the only community pharmacy in Debre-Markos. A 27 yrs old man enters the pharmacy and asks to see you. He says that he had sexual relations yesterday with a girl, that their method of contraception (condoms) failed and that he needs to get some over the counter tablets for her to ensure she doesn't fall pregnant. He explains that the girl is too embarrassed to come in and ask for the tablets, as she is worried that someone in the pharmacy (other customers or staff members) will know her and find out about her situation. Explain your ethical and legal obligations in this situation?



Unethical Behavior/Practices

Unethical behavior –Definition

38

- Defined as behavior that contravenes rules designed to maintain the fairness and morality of a situation
- An example of unethical behaviors:
 - ✓ Taking kickbacks for preferential treatment
 - ✓ Violation of confidentiality
 - ✓ Exceeding one's level of professional competence
 - ✓ Negligent practice

Unethical Practice...

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- Claiming expertise one does not possess
- Imposing one's values on a client
- Sexual activity with a client
- Questionable financial arrangements (i.e., charging excessive fees)
- **Improper advertising**

 **Behaviors like this are motivated by various things**

The Causes of Unethical Behavior

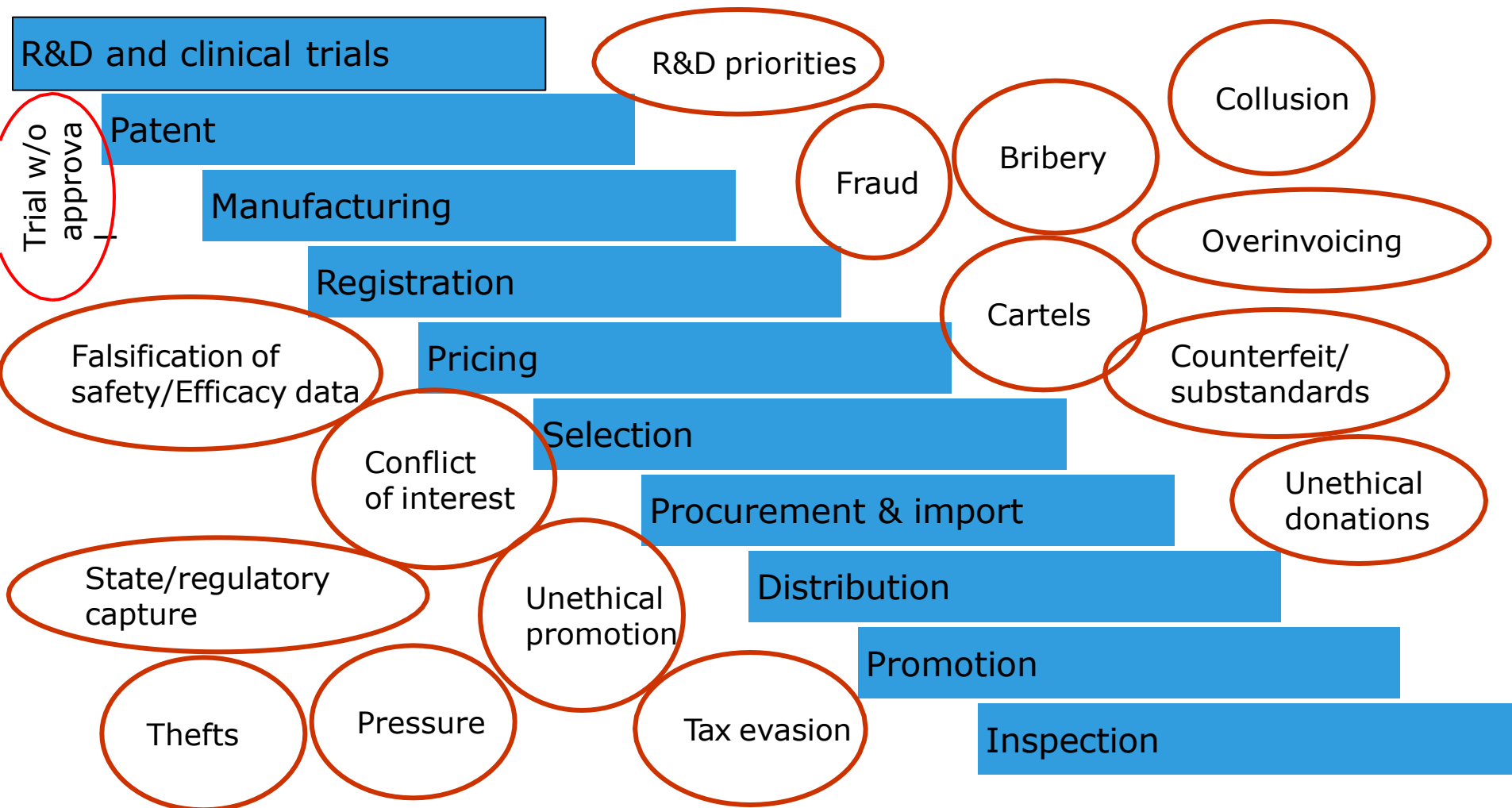
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Examples of unethical practices in pharmaceutical sectors

Unethical practices can be found throughout medicines chain & are very diverse

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Impact of Unethical Practices

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- **Health impact/Negative patient impact**
 - ✓ Lack essential medicine - increases morbidity & mortality
 - ✓ Unsafe medicines on the market
 - ✓ Irrational use of medicines

Impact...

44

■ Economical impact

- ✓ Enormous amounts of limited resources lost
 - Pharma. Expenditure low-income countries
 - ➔ 10-40% of public health budget
 - ➔ 20-50% of total health care expenditures
 - Poor most affected ➔ inequalities
 - Such losses cripple the ability of healthcare institutions to provide adequate care

Impact...

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- Image and trust impact
 - ✓ Reduces government capacity
 - ✓ Reduces credibility of health profession
 - ✓ Erodes public trust

THE END